

Mohammad Shahvez v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 31 May 2023 · 2023:AHC:122031-DB · Writ - C No. 16872 of 2023 · **Disposed; recovery withdrawn; fresh order must follow Supply Code, 2005.**

HEADNOTE

The electricity department stated that a recovery citation dated 2 January 2023 for Rs.22,36,475, issued on a final assessment, had been withdrawn, and that a fresh order would be passed after hearing the petitioner. The writ was disposed of, with liberty to the respondents to pass that fresh order strictly in accordance with the procedure prescribed in the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mohammad Shahvez petitioned the Allahabad High Court against a recovery citation of 2 January 2023 issued by respondent no. 5 for Rs.22,36,475 on a final assessment. In hearings from 18 to 30 May 2023 counsel for the electricity department sought time to complete instructions. On 23 May 2023 the Court barred coercive action on that recovery and later extended the protection. On 31 May 2023 department counsel stated that the recovery had been withdrawn and that a fresh order would be passed after hearing the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

fresh order after withdrawal of recovery

HOLDING

On the electricity department's statement that the recovery citation dated 2 January 2023 for Rs.22,36,475 stood withdrawn and that a fresh order would be passed after hearing the petitioner, the writ was disposed of. The respondents have liberty to pass that fresh order strictly in accordance with the procedure prescribed in the Electricity Supply Code, 2005. ¶ 1-3

FLAG The order invokes the procedure in the Electricity Supply Code, 2005 without numbering a clause.

PRINCIPLE TAGS

fresh-order-strictly-per-supply-code-2005 After the department withdrew the recovery citation and undertook to hear the petitioner, the Court disposed of the writ and confined any fresh order to the procedure prescribed in the Electricity Supply Code, 2005, without deciding the assessment. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FINAL ASSESSMENT OF RS.22,36,475 WAS LAWFUL AND RECOVERABLE

The recovery citation was withdrawn. A fresh order after hearing, following the Supply Code, 2005 procedure, was left to the respondents. ¶ 1-3